

BULLETIN OF THE DEPARTMENTS OF HISTORY AND
POLITICAL AND ECONOMIC SCIENCE IN QUEEN'S
UNIVERSITY, KINGSTON, ONTARIO, CANADA.

NO. 17, OCTOBER, 1915.

CRAFT-GUILDS OF THE
THIRTEENTH CENTURY IN PARIS

BY

F. B. MILLETT.

The Jackson Press, Kingston

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OF THE THIRTEENTH CENTURY IN PARIS ***

Transcriber's Note: Although the title page of this book reads "Craft-guilds of the thirteenth century in Paris", the text consistently uses the spelling "gild".

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CRAFT-GILDS OF THE THIRTEENTH CENTURY IN PARIS.

The gild as it appears in Paris in the 13th century, M. Lespinasse in his Introduction to Étienne Boileau's *Livre des Métiers*, defines as "a combination of individuals having the right to carry on an industrial profession, composed of masters, *valets*, and apprentices, and bound by oath to observe the prescribed regulations, and to respect the authority of the Jurés in their supervisory functions." The gilds in documents of the time are called somewhat loosely *corporations*, *corps de métier*, *métier*, *commun du métier*, *ghilde*, and less correctly *charité* or *confrérie*.^[1] The gild was a fortress to which the workman rallied and from which he beat off assailants in the form of feudal lords or foreign trade competitors. Its primary function was to safeguard the rights of labor, at any period none too stable, and in the complicated social organization of the later Middle Ages, decidedly precarious. Privileges had to be fought for and wrested from the overlord of the community, be he king or noble, and a definite regulation, though still in its prescriptions onerous, was preferable to a haphazard system of 'taxation,' subject only to the sanity or rapacity of count, king or bishop. Foreign laborers and merchants, too, the narrow economic vision of the period pointed out as hostile to the well-being of the city-gild, and so exclusion by legislation is an important article in its "foreign policy." Against enemies within their own ranks a sharp guard had to be maintained; ignorant practitioners or a superfluity of apprentices might sadly damage the gild's reputation for work which was "good and loyal." The organization of the 13th century gild seems to find its motives in the desire to establish a definite and firm control over the *métier*, and to establish, so far as custom and law would sanction it, a monopoly over the commodities produced.

The question of the political significance of the gild may be set aside at the start. It has been a difference of opinion which came first, the gild or the

commune, and whether there was a causal relationship between the two. The fact is that most of the guilds—as organizations—had no political share in such activities as elections. The guild was not the cause of the commune; the commune did not originate the guild. M. Fagniez^[2] has said “Le mouvement communal ne fut pour rien dans cette émancipation de la classe ouvrière; elle était terminée quand il commença.” It is interesting to note, however, the prominence which, under the guild régime, certain *bourgeois* and tradesmen attain. For example, the provost of the watermen of Paris came to rival in power the king’s provost of Paris.

It is outside the province of this paper to discuss the somewhat vexed question of the origin of the guild. Various theories have been vigorously championed, and a mere mention of them with a few facts as to the early appearance of the guilds will suffice. One theory maintains a survival from the Roman *College*, another as an analogue to the Germanic *guild*, and the third as an organization under the direction of the feudal lord. It is curious to note how in 1725 M. Félibien in his “Histoire de la Ville de Paris,” misinterpreted the origin of the *Livre des Métiers* on the basis of this latter theory, attributing too much of the slow development of an *organism* to the shaping hand of Boileau. He says: “E. B. *rangea* tous les marchands et les artisans en differens corps de communautéz, sous le titre de confrairies. Ce fut le premier *qui leur dressa* des Statuts, qu’il fit ensuite approuver dans une assemblée des principaux bourgeois de Paris. Les prévôts successeurs de Boileau adjoustèrent de nouveaux réglemens aux premiers, et il en fut fait en recueil.”... The prevalent theory of the guilds’ origin is that they were born spontaneously from the needs of the people, that they were a natural line of development for youthful industry, in self-protection, to take.

Charters or privileges claimed by the guilds date from the 11th century, though they are most abundant in the 13th. The most ancient charter published in the *Recueil des Ordonnances* is that of the chandlers of Paris, dated 1061. This document, however, is now supposed to have been forged in the 15th century. From 1121 dates the first charter of the *marchands de l’eau de Paris*. In 1160, Louis the VII gave to Thèce, wife of Yrves Lacohe, and her heirs, the ‘mastery’ of five guilds which dealt with leathers, the tanners, the curriers, the shoe-makers, the leather-dressers, and the purse-makers. In 1162 come new privileges granted in regulation of the bakers. In 1183 Philip Augustus rented *a cens* four houses which he had confiscated

from the Jews, to the drapers' gild. A lord in 1219 sold the confrérie of cloth-merchants a house, and gave them the leases of several adjoining houses.

The book which is the object of this study—the *Livre des Métiers*, owes its origin to a capable official of Louis IX, Étienne Boileau. He was appointed prévôt of Paris about 1260.^[3] This official had the rank of the first bailiff of France. His 'office' was the Châtelet, where he judged in person the greater part of the civil and criminal cases in Paris and the *vicomté*; he was judge of appeal from the feudal nobles and ecclesiastics who still had fiefs in Paris. He had charge of the military service, of the policing, the finance and 'justice' of Paris and its suburbs. This official, or the holder of this office, "who administered with firmness and loyalty," wished to correct the faults incident to the jurisdiction over the gilds, by establishing in writing the 'constitution' of each gild. The masters of the gilds accordingly presented their regulations, and the result is a register of the laws and customs of 101 craft-gilds of Paris.^[4] Some of the privileges or implied immunities pretend exceeding antiquity. The stone-cutters claim immunity from the duty of the watch from the time of Charles Martel. Upholsterers cite privileges granted by Louis the VII, and the bakers claim from Philip Augustus the right to exclude 'foreign' bakers (i.e. bakers from outside Paris), from the markets except on Saturdays. What we have then in this invaluable *Livre* is a cross-section of the commercial and industrial life of Paris in the third quarter of the 13th century. A study of this manuscript will show a vivid and complete picture of the working class, and, by implication, of the upper nobility's commercial habits.

The gilds were composed of three grades of individuals: apprentices, *valets*, and masters. The term *ouvrier* was applied in general to all the divisions, even more loosely than our term *workman*.

The apprentice, though considered as a member of the gild, was not of the corporation until his apprenticeship was over. The term was begun by a contract between master and aspirant. Usually this contract was oral, because the writing of a document was too expensive a process. At any rate, it was always a mutual engagement, sworn to, before the Jurés, an engagement which imposed on both parties mutual duties which neither should attempt to evade. A regulation concerning the agreement runs as follows: "The master who takes an apprentice should summon to the

ceremony of the contract two masters and two *valets*, to hear the agreement made between master and apprentice, and it is fitting that the *master who guards the gild* should be called also.” The Jurés before authorizing the contract, were supposed to make careful inquiries as to the ability and the financial position of the master.

About forty of the gilds were allowed to have as many apprentices as they liked. Among these were the corn-dealers, the gold-beaters, the ale-brewers, green-grocers, farriers, drawers of iron wire, millers, shoe-makers and the *barilliers*. Usually, however, the number was limited to one or two. The mercers, the fullers, weavers of silk-stuffs, knife-handle and blade makers were allowed to have two, while the rope-makers, pewterers, precious stone dealers, braid-makers, drapers, goldsmiths, and shield-makers contented themselves with one. The motives for such limitation were at least *double*: the altruistic reason was that the master should not have too many to teach well; the self-protective reason was that the gild should at no time be swamped in competition by too many (prospective) masters.

The term of apprenticeship was also most scrupulously fixed. The conditions are usually a definite term without payment of fee or a term gradually lessened according to the increase in the size of the fee. The haberdashers and the pewterers could fix the duration of apprenticeship at will; other terms vary from 3 to 8, to 10-12 years, with fees varying from 20 Parisian *sous* (5 fr.) to 100 Parisian *sous* (20 fr.), by means of which the apprentice could buy off part of his time of service. There seems, however, to have been no attempt to make the time directly proportionate to the costliness of the raw material and the difficulty of the process, or the skill required in the craft. The rope-makers require an apprenticeship of 4 years, the brass-wire drawers 6 years, the chest-makers 7 years, the makers of iron shields 8 years, the curriers of shoe-leather 9, the jewellers 10, and the coral and shell bead-makers 12 years. The wool-weavers demand 4 years plus 4 *livres*, 5 years and 3 *livres*, 6 years and one *livre*, or 7 years without fee. Power over the length of term resided of course in the hands of the masters, and the rules contain only the minimum requirement. We read, “No one can or ought to take or have more than two apprentices, and he cannot take them for less than 7 years of service and twenty *sous* of Paris, which apprentices must give to the masters; or at 7 years without money, but more

money and longer service he can require if need be.” How irrational the terms were may be seen from the fact that while the goldsmith’s term is 10 years, the brass-wire drawers (a far less “skilled” gild) required 10 years and 20 *sous*, or 12 years and no fee, and that of three bead-making gilds, one demanded 6 years and 46 *sous*, another 10 years and 46 *sous*, and the third 12 years without possible shortening of the term. If the apprentice, however, bought off part of his regular term, the master was not permitted to take another apprentice till the complete period was over. An extra apprentice was sometimes allowed if the wife of a master knew the trade. “No one of the craft aforesaid can have more than one apprentice, and if he has a wife, can have only one if she does not know the trade, but if the man and the woman know the trade, they can have two apprentices, but they can have as many *valets* as they wish.” Among the masons, a Juré could have two apprentices, the other masters could employ only one.

Exceptions to rules of apprenticeship were made for the sons of masters, or of their wives, and in this beginning of family privileges, we see foreshadowed the tyranny of the close-corporation control of the gild in latter centuries. All the sons of the master and his wife, if she knows the trade, may rise to the ‘mastery’ usually with no fixed term of apprenticeship. If the children were illegitimate, no privileges were granted them. In the case of the goldsmith we see still wider family privileges, for we read “of his lineage and of the lineage of his wife, whether distant or close, he can have as many (apprentices) as he wishes.” The wool-weaver was allowed in his house two large looms and one small one for himself and for each of his married sons, and one loom each for a brother and a nephew, if they “knew how to work with their hands.” In the gild of the iron shield-makers and several others, appears the obligation of teaching the son of a poor master or his orphans free.

The conditions of the contract of apprenticeship shed much light on the lives of these little workmen, and the statutes recognize the possibility of their being led astray by “leur folour et leur joliveté.” The apprentice, we are told, should obey all the orders of the master, and not complain without justice of the master’s oppression to the *prud’hommes* of the gild. He had to clean the workshop, run errands for the family and for the business. That apprentices were not always docile, nor their circumstances congenial, the many rules dealing with their flight suggest. An apprentice who had taken

flight from his master could not be received into the workshop of another member of the gild until the complete period of his apprenticeship contract had elapsed. The *pâter-notriers* had to wait a year and a day after the flight of an apprentice, and the tablet-makers 26 weeks, before taking in another. After three attempts to escape, all obligation between gild and apprentice ceased. “And this regulation the *prud’hommes* of the gild make to restrain the folly and jollity of the apprentices, for they do great harm to their masters and themselves, when they run away; for when the apprentice is enrolled to learn, and runs away in a month or two, he forgets as much as he has learned, and thus he wastes his time and does harm to his master.” The wool-weavers and the locksmiths insisted that the escaping apprentice pay the master what his training had cost.

The statutes recognize the right of the master to sell the apprentice to another master under certain circumstances. “No cutler can sell his apprentice unless he (the master) lies on a bed of sickness (*lit de langueur*), or is going across seas, or is leaving the gild for good or does it because of poverty.”

The master’s obligations to the apprentice consisted in lodging, feeding and clothing him and in teaching him the trade. That masters did not always scrupulously abide by these duties, various law-suits and *régles* attest. Only the tablet-makers and the important wool-merchants, provide, in their statutes, for a defence of the apprentice’s rights. There we find that if the master fails in his duties, the gild masters, upon complaint of the apprentice, “must admonish the said master, and if he does not comply, they must seek out a new master for the apprentice.” In another place, we learn of a fine imposed on the master who provoked his apprentice to flight.

A decree from the Châtelet: 3 Sept., 1399, gives a living vignette of these domestic relations a century after our period.^[5] “We have enjoined and commanded the said master that he treat the said Larin, his apprentice, as the son of a *prud’homme* should be treated, and that he abide by the matters contained in the said contract, without having him beaten by his wife, but that he should beat him himself if he misbehaved.” In the same year also a father succeeded in breaking his son’s contract because the goldsmith, the boy’s master, by hitting him with a bunch of keys, had “made a hole in his head.”

The possible marriage of an apprentice during the term of his service is provided for thus: "If any apprentice marries during the time that he has promised to serve his master, and does not wish to eat dinner and supper with his master, he ought to have four *deniers* every working day for his support."

It is not very clear from our texts, whether an examination at the end of his term was usual or infrequent. Only rarely is the demand for a *chef-d'oeuvre* mentioned. The saddle-bow makers claim that after an apprentice has made his *chef-d'oeuvre* he should become more important in the workshop "so that his master may not send him out into the city to fetch his bread and his wine just like a boy." The goldsmith's statutes provide that if he becomes skilful enough to pay his expenses and to earn 100 *sous* a year, he may be freed from his contract and allowed to earn a salary. At the end of the period, however, *any* apprentice must declare before the Jurés on his oath that he had fulfilled his term according to contract.

To our mind, the apprentice system here revealed does not seem devised for the best interest of the child. Too much power for good or ill lies with the master. If he so wishes, there seems to be little to prevent his letting his charge remain in a state of childish and unprofessional ignorance. The long term of service, the wide power of master upon man seem devised to add to the master's profits, not to his charge's skill.

The *valet*, *sergent* or *aloué*, i.e. hired man, was an individual who had finished his term of service as apprenticeship but had not yet risen to the dignity, as master, of having an establishment of his own. Women of this grade, in gilds to which they were admitted, were called *chambrières* or *meschinettes*. Usually the master could have as many *valets* as he wished, but occasionally the number was limited so as to prevent rich and attractive workshops getting many *valets*, and, accordingly, something approaching a monopoly of the trade.

A *valet* who had been trained outside Paris had to present evidence that he had done the preliminary term elsewhere. Of such a man, too, it was possible to require a kind of surety or testimonial of a fair dismissal from a former employer. Evidently the narrow mediaeval view of protection of home industries led to the discriminations against workmen from outside, for we read, "It is ordered and decreed that no person of the said gild should

hire any foreign man so long as he can find a workman who is a member of the gild.” Care was taken too that disgrace and scandal should not fall upon the gild through *valets* of bad character. “*Rêveurs*, scoundrels, murderers, knaves, thieves, men of ill fame” are stipulated as improper candidates, and a wool-weaver whose relations with a woman were a by-word “was sent out of the city and forbidden the trade until he should amend his character.”

The length of the term of hire is not definitely stated in our regulations, and it varied from a day, a week, a month, to a year. In the morning all unemployed *valets* assembled early in a designated street or square. There they were to stay until the bell from a certain church sounded. No private individual could hire an artisan. If a bargain was made, the *valet* went to the house of his employer at dawn and stayed under usual conditions till sunset. The hours accordingly varied largely, from 14 hours in summer to 8 in winter. Very few *valets* lodged and ate with their patron. They ‘went out’ in search of their noonday-meal with the provision that, after it, they should not loiter to wait for a fellow-workman. If the gild was one which allowed night-work, and the master desired it of him, the *aloué* must comply for a raise of pay. Sometimes the *valets* rebelled against this compulsion, and were threatened by the magistrates for this attempt at industrial freedom. In only one case is vacation mentioned, but as we shall see in discussing the *chômage*, there was little need of it. The brass-wire drawers stipulate, however, that the workmen may have a vacation in the month of August if they wish.

Women were admitted to membership in guilds where their delicate skill and taste made them useful. In 1292 the group dealing with embroidery was composed of 81 women and 12 men.

Occasionally conditions of employment are stated with more detail. A rule of the sword-cutlers runs this: “No^[6] master should take a *valet* to work unless he has five sets of clothes with him in order that the workmen may look neat in case the nobles, counts, barons, knights, and other good folk should at any time come into the work-room.” The *valet* could not be dismissed unreasonably, and rarely the provision is made that two *valets* and two masters must agree upon the dismissal before it could take effect. After a year and a day, the *valet* could have his wife come and work with him, if the gild admitted women.

A considerable distinction between masters and *valets* already existed, though in the smaller organizations the gulf was less apparent. There were no large factories in the modern meaning, and in a small workshop conditions of equality were more likely to obtain. Several facts show, however, that the *valets* in some places were beginning to feel themselves a distinct industrial class. Infrequently they had their own confrérie and their own jurés. The masters in some cities already foresaw the possibilities of a kind of class-struggle, and at^[7] Beauvais punished with imprisonment and fine men who attempted combinations in the hope of raising wages. In 1280 at Ypres, workmen rebelled against an ordinance adding one hour to their working day, and in their rioting killed the mayor. Of course they were severely punished. (But how modern these actions prove our industrial class of the Middle Ages to be.)

The obtaining of the mastership or mastery of a gild, i.e. the right to set up a workshop, to go into business, depended on certain qualifications in the aspirants, and certain formal ceremonies, necessitated by the organization of the gild, and its (frequent) feudal relationship to the king or his official. The first requirement was skill, acquired during service as apprentice and *valet*, capital, upright character and good conduct. Most of the sections have such an article as “Quiconques veut estre de tel mestier, estre le peut pœrtant qu’il sache le mestier, et ait de coi,” and an article of the *drapiers* reads: “Il conviendra qu’il sache faire le mestier de touz poinz, le soy, sans conseil au ayde d’autrui et qu’il à ce examiné par les gardes du mestier.” The cook’s regulations require that the son of a master have an expert in his bake-house until the masters judged the son skilful enough. This article was evidently designed to counteract the carelessness of regulation of the apprentice-work of sons. The formal requirement was the purchase of the right to trade. At the most 25 gilds were required to purchase this right, the rest were “free.” Among these who purchased were the bakers, the criers of wine, the retailers of bread and vegetables, the farriers, the cutlers, locksmiths, weavers of silk cloth, masons, hose-makers, poulterers, potters, old-clothes dealers, purse-makers, saddlers, shoemakers, glovers, and fishermen. The necessity was created by the fact that about 30 of the gilds were fiefs of the king, and accordingly could be reserved for himself, or bestowed upon his favorite officers. In general, however, those the king retained for himself, notably, the dealers in food-necessities, were free of purchase.

After purchasing the right from the king, the aspirant had usually to present himself within a week to be admitted to the corporation. At a solemn meeting the masters or jurés “read loudly” and explained the regulations. The recipient of the privilege then swore by the saints’ relics that he would keep the laws and carry on his profession carefully and loyally. Initiation fees were of course variable; the criers paid the jurés 4 *deniers* (0 fr. .45), the silk-cloth weavers and hose-makers 10 *sous* (2 fr. .50); the *épiciers* paid 5 *sous*^[8] *pour boire* to their companions. The time for paying this fee also varied. The curriers of shoe-leather were allowed to pay their fee a year and a day after establishment, while the bakers were restrained only by a limit of four years. The widow of a master was generously permitted to carry on the business in his stead, though usually if she remarried a stranger, i.e. a man outside the gild, she forfeited this right.

M. Lespinasse makes an interesting distinction in affirming that the mastership was not a rank, but a privilege; it was not a case of ‘once a master, always a master.’ Upon the relinquishment of the activity and privileges implied, a master became an artisan, and, for instance, the hose-makers assert that 35 masters among them have fallen into poverty. The master with all his attempts to protect his position and rights, bore the not-light burden of taxation from which the *valets* were directly, at least, exempt.

The internal administration of the gild was performed by officers called *jurés* or *prud’hommes*, and the external relation of the gild in its dealings with other gilds or the city was supervised by the Crown or the Crown official who held the gild in fief. The jurés were also called *gardes*, *syndics*, *éswards*, *élus*. The typical method of choice was the election of a certain number by the masters of the gild, and their ratification and investiture by the Provost of Paris or other Crown official. Sometimes, however, the Provost or Crown officer appointed the *guards* with no semblance of suggestion, in theory at least, from the gild itself. Occasionally the election was wholly in the hands of the *community*. Sometimes the departing *prud’hommes* nominated their successors. Among the haberdashers, failure to serve, if one were elected, called down upon him a fine of 10 livres (134 fr.). The term of office was usually a year. The goldsmiths, however, changed their officers only every three years. The fullers, who had two masters and two *valets* as officers, changed them at Christmas and at St.

John's Day. Before the Provost, the *valets* named two masters, and the masters two *valets*, for service, a *nice* balance in the interest of just administration. Women were allowed offices for such gilds as they were important in. The workers in silk-stuffs had three masters and three mistresses; the weavers of kerchiefs three *maîtresses*.

In being invested with office, the *jurés*, for instance, of the bakers swore on the relics of the saints that they would 'guard the gild' carefully and loyally, and that in appraising bread, they would spare neither relatives nor friends, nor condemn anyone wrongly through hatred or ill-feeling. The chiefs of the gilds scrutinized the quality of the products, denounced frauds and infractions of the rules, presided at solemn conclaves of the gild, and represented it before the law. They presided at the contract of apprenticeship, received the oaths of artisans and masters, and administered the funds of the corporation. In case of appeal from the jurisdiction of the *jurés*, the Provost of Paris was the first authority, and above him was the *Parlement de Paris*. On the lands of a feudal lord, the latter usually retained the privilege of administering petty justice.

The question of remuneration to the *jurés* for loss of time naturally arises. Usually a definite fraction of the fines was awarded to them. Besides, too, the honor which accrued to them, exemptions from the duty of the watch and from certain of the fines of the trade, are mentioned.

Most gilds had officers of only one rank upon whom all the duties fell. Occasionally discrimination was made, and two superior officers chosen from the masters held the power of handing down decisions while their *valet*-assistants exercised supervision, and reported infractions of the rules to the masters. Perhaps the most frequent number of *jurés* in a gild was two or four. The armorers, the iron-shield-makers, the potters, the rope-makers, bead-makers, gold-beaters, braid-makers, spinners of silk, etc., had two, the fullers, the tallow-chandlers four. The brass-shield makers were so few that they did not elect a *juré*, but asked the Provost to hear their cases directly. Only one *guard* is mentioned in the statutes of the clasp-makers and the flower-hat makers. The curriers have three, the farriers six, the goldsmiths two or three, the head-dress makers eight, and later only four. The bakers and the retailers of fruit and vegetables had twelve officers.

The most feudal feature of the craft-gild organization is, perhaps, the dependence of the gild on the Crown or its officials or vassals. Most of the gilds were dependent upon (*relevaient à*) the Prévôt de Paris. To him the *prud'hommes* carried complaints, against other gilds, for example, and it was he who appointed a *prud'homme* to execute for him the functions suggested above. We have seen that Louis the Younger granted to a woman the 'mastery' of five gilds, which remained enfeoffed to the sixteenth century. The grand pantler was the judge of the bakers, and each year appointed a master to look after the gild. The grand chamberlain looked after the wool-weavers, haberdashers, tailors and upholsterers, and others who had to do with clothing and furnishings; the cup-bearer (*échanson*) had the wine merchants, and the *maréchal* the smiths, farriers, helmeters, locksmiths and other iron-workers. The grand butler tried to keep order among the wine-shop keepers. To his mason, Guillaume à Saint Patrie, the king confided the masons, stone-breakers, plasterers, etc.

Exact hours for work were not set down; the time of the world in which the artisan lived was too entirely dominated by the custom of the Church to permit of hours being designated as 7 a.m. to 5 p.m. "No one of the gild," we read, "ought to work on holy days which the people of the city keep, nor on Saturdays during *charnage* (i.e. the time during which it was permitted to eat meat) after Vespers, nor after Compline on Saturdays during Lent, nor at night at any time of the year." During Lent, Vespers fell at 6 o'clock, and Compline at 9. *Charnage* was used loosely to mean not only the period during which meat could be eaten, but also the period of short days, while *Carême* meant the period of long days. Night work was expressly forbidden for goldsmiths, sheath-makers, weavers, braid-, chest-, buckles-, beads-makers, pewterers, lamp-makers and locksmith's, "for the light at night does not suffice for the trade[s] aforesaid." Millers and brewers could work day and night, and it was permitted to all farriers (but not to locksmiths and cutlers), to goldsmiths, lamp-makers, brass-wire drawers, to cast, if need be, during the night, inasmuch as the process sometimes lasted a day or a week. The restriction upon night work was ineffective if the work were for the household of the King, the Queen, the Princes of the blood, the Bishop of Paris, and other great Lords.

The Church's observance of Sundays and fast-days (holy days) caused among the gilds much cessation from work—*chômage*. The eve of Sunday

and important holy days, work was stopped at *Nones* or *Compline*. On Sunday the baths were not heated, on Sunday the bakers did not make bread, and kept, besides, twenty-six fast-days and the day of their Patron Saint. The goldsmiths, the haberdashers, the felt-hat makers, took turns within the gild in keeping their shops open on Sunday. The *barilliers* and the armorers worked without restriction on the ground that their work was vitally important to noblemen. A saddler could repair a shield or a harness on Sunday, and rose-chaplets could be made at any time “during the season of roses.”

Inasmuch as the policy of the gilds proscribed the action of free competition, it was necessary for them, in order to sustain their reputation, to provide in some way, that the products should be exactly what they pretended to be. To this end they legislated carefully as to the quantity and quality of raw material to be used, and provided for supervision through the stages of manufacture to the sale of the finished product. The *cervoise* (a drink somewhat resembling ale) should have no constituents save grain and water. The beater of metal-leaves must have a certain alloy of gold in his silver leaves. The bead-makers must not string beads which are not perfectly rounded. The haberdashers complain of the appearance of “several pieces of bad work to the damage of all the common weal, every day, by reason of the lack of proper restriction.” At Amiens,^[9] the locksmiths were forbidden, for fear of thievery, to make a key unless the lock was produced, and the butchers to *souffler la viande*, to mix tallow in the lard, to sell dog, cat or horse flesh. In Paris, boxes whose locks were made with ‘hinges’ were summarily burned, and fines were incurred for putting old locks on new furniture and new locks on old furniture. Trimmings of silver were forbidden on bone knife-handles for fear the makers should sell them for ivory, and knife-handles must not be covered with silk, brass- or pewter-wire, lead or iron, because inside, they were only deal, and might deceive an ignorant buyer. Hemp and flax must not be used in the same rope.^[10] If a tailor spoilt a valuable piece of cloth by bad cutting, and the *gardes* ascertained it, he had to make restitution to the client, and pay a fine, 3 *sous* to the king and 2 *sous* to the *confrérie*. If an artisan did the spoiling, he paid the master, and worked for one day, without pay, for the *confrérie*.^[11] Chandlers seem to have been especially open to temptation. Too heavy a weight of wick is expressly regulated against in the provision that four

pounds of tallow should carry only a quarter-pound of wick. Wax tapers must not be adulterated with tallow.

Gilds in danger of usurping each other's business were jealous of privileges. A tailor must not mend old clothes, nor a rag-man make new clothes. A curious controversy arose from the fact that clothes restored by the old-clothes dealers were frequently mistaken for new. It was finally decided that this latter gild must not press, fold and hang old garments for fear of this deception.

The visits of the *gardes* were at unexpected times, and almost all the gilds require their inspection of saleable articles "poer sauvoir se il i a nulles mesprantures." The *gardes* of the weavers carried an iron rule on which was marked the length of various kinds of cloth, as it was fixed by law. Goods which did not comply with the statutes were confiscated, burned or given to the poor, while the culprit paid a fine. To make sure that no bad product elude the vigilance of the guards, further regulations as to the place of manufacture appear. A wool-weaver could not have two shops on either side of the street, though we have seen how liberal he might be as to the number of looms. An armorer was not to get anything necessary for his trade made outside the shop, therefore he was forbidden to carry armor through the streets unless he were poor and lived in an out-of-the-way quarter where sales would be difficult. The tailor must not cut his cloth except at a window of the first floor of his shop.

Fines ranging from three to ten *sous* were the natural consequence of faulty production. The corrupt gold-beater paid 3 *sous*, the jewellers, who dared use colored glass, 10 *sous*, the dealers in silk-stuffs paid 8 *sous*, of which 5 went to the King, 2 to the Master, and 1 to the *Confrérie*. In 1312, dealers in spices who purveyed *fausse merchandise* were condemned to lose their commodities, and to pay, besides, 60 *sous*: "40 to us (i.e. the King, or to the lord of the place where justice is done), and 20 *sous* to the master of the gild at or near the place where the offence is committed"—to pay the expenses of the gild. As a further guard against adulterated products, most of the gilds had a mark or a seal which carried a guarantee of quality commensurate with the reputation of the gild.

Before goods could be sold, those who had the right to weighing and measuring apparatus in their own houses, must have these sealed by the

measurers and gaugers' gild. Others must use the scale of the king or his vassal. Most goods were sold on Friday and Saturday, when the merchants shut up shop and went to the *Halles* where markets were held. As a rule, the gilds were opposed to the hawking of their goods—*col-portage*; they preferred the more regular custom of the stalls of the market. Here, too, they succeeded in legalizing their privileges against foreigners. For example, the bakers succeeded in preventing the sale of all 'foreign' bread in the city except on Saturdays. The municipality also watched after its own interests in the interests of the crafts. Merchants were forbidden to leave the city before the opening of the Fairs, and sales must be transacted only in the square of the *Halles* after a stroke from the great bell. The craft organizations themselves were much afraid of possible monopolies. The weavers, dyers and fullers are expressly forbidden to enter into combinations to fix a price on goods or a monopoly on materials "so as to prevent the people of the gild from having work according to their means." The retailers of produce were forbidden to arrange for commodities in advance. "Retailers ought not to buy in advance of any merchant carriage-loads or consignments of eggs and cheeses, deliverable at his next trip, or after any delay whatsoever"; such transactions are wrong because they offer too much uncertainty and too many frauds in the conditions of delivery. The mediaeval man feared 'corners,' for he felt "the rich will sell back everything, as dear as it pleases them to do."

In the market "good form" must be observed between members of the same gild. One member must not intrude before a sale is consummated. "If anyone is in front of the stall or window of a cook to buy or bargain with the said cook, and if any of the other cooks call him before he has left the stall or window of his own will," the fine will be 5 *sous*.

For the privileges implied in the gild structure, the feudal authorities demanded a return in the form of taxes. The gild-masters bore the burden not only of the civil taxes which all citizens shared, such as the *taille*, the *conduits* and *péages* (tolls), but also special commercial taxes such as the *hauban*, the *tonlieu*, and the *coutume*.

The *hauban*, according to *Livre des Métiers*, Section I, Art. 7, "is the name appropriate to a tax assessed from ancient times, by which it was established that whoever should be a payer of *hauban* would have more freedom and less taxes to pay for his right of trade and commerce." It was a

sort of agreement offering the advantage of combining in one payment a large number of daily dues. For this privilege the bakers owed 6 *sous*, the retailers of bread and salt, 3 *sous*, the butchers 6 *sous*, the fishermen, purse-makers and curriers 3 *sous*, the glovers 3 *sous*, 8 *deniers*, and the old-clothes men 6 *sous* and 8 *deniers*.

The *tonlieu*, also called the tax of buying and selling, was the real tax on trade. At every sale, the merchant and the customer owed a small per cent. of the purchase to the city or lord who controlled the market. About twenty chapters of Part II in the *Livre des Métiers* are devoted to an elaborate schedule of this tax which varied according as the sale was at shop, fair or market. In general, M. Lespinasse estimates, the *tonlieu* equalled 4 *deniers* per wagon-load, 2 per cart-load, 1 *denier* for beast-of-burden's load, and 1 obole for a man's load.

The *coutume* was very irregularly shared; it usually fell due at several times through the year. So the bakers owed 6 *deniers* at Christmas, 22 at Easter, and 5 at St. John's Day, and a *tonlieu* of 1½ *deniers* in bread or money per week. The retailers of produce also owed these taxes if they dealt in bread. At any earlier period, the *coutume* was always paid 'in nature,' i.e. in the product itself. Accordingly, the hay-merchants owed a box of new hay every time the King entered the city. The wooden-utensils makers furnished seven casks, two feet long, towards the up-keep of the King's cellars, and for this service they were excused from the watch. The farriers owed at first the *fers du Roi*; i.e. they had to keep the saddle-horses of the court well shod. But later this function was compounded in terms of money, due to the royal maréchal in consideration of which he had the horses shod.

Another feudal obligation irksome to some of the guilds was the personal "duty of the watch"—the *guet*. As the masters of the guilds were alone responsible for this important service, it was also called the *guet de métiers*. Each guild had its turn about every three weeks, when the masters must go at nightfall to the Châtelet and answer the roll. The watch then lasted from curfew till the next sunrise. Usually the guilds which served the aristocracy most directly were exempt from this duty. Among these were the goldsmiths, *barilliers*, armorers, painters, sculptors, bow-makers, flower-and plumed-hat makers, and haberdashers. How irksome this duty had

become may be inferred from two statutes in the *Livre des Métiers*. The garment-cutters say:

“The *prud’hommes* of the said gild beg that they be relieved from (the duty of) the watch, if it please the King, on account of the fine clothes which they have to make and keep over night which belong to gentlemen, and on account of the large number of strange workmen whom they could not entirely trust to take care of things, and because they have to cut and sew clothes for gentlemen both day and night in view of the gentlemen and strangers going away at once, and because they have to return the garment which they make in the evening, on the morning of the next day.”

The old-clothes dealers have two intimate and vivid articles. Art. 33: “No one who is 60 years old, nor those whose wives are with child, so long as they be ill, and no one who has been bled, if he has not been summoned before he had himself bled, and no one who is going out of the city, if he has not been summoned before he goes out, need to share the watch. But they must inform him who has charge of the watch for the King, by means of their men or their neighbors.”

Art. 34: “And the *prud’hommes* of the gild say that they are grieved that, for 10 years back, those who have charge of the guard for the King, have not been willing to receive the excuse from the above-mentioned service from their neighbors and their workmen, but make come their wives themselves, either fair or ugly, either young or old, or feeble or fat, to convey the excuse to the lord, a thing which is most ugly and most grievous—that a woman should stay and sit at the Châtelet from curfew so long as the watch is out, and then go away with her son or her daughter, or without either of them, through strange streets to her home, and through this message-bearing wrong, sin, yea, villainy has been done.”

Confrérie is a word not very widely used in the *Livre*. Seventeen of the gilds display this organism. It served to systematize the religious impulses of the gild-men’s lives and also to control the benevolent activities of the older structure. The tablet-makers require all salaried workers to join the *Confrérie*, and at a death in the gild, a man or woman from each workshop must follow the corpse or pay a fine of ½ pound of wax. The *confrérie* usually centered its activity in a church or chapel in the district where most of the members lived. The *confrérie* of the furriers and the upholsterers

shared *l'Église des Innocents*; the masons attended the *Chapelle de St. Bleive*; the bakers *St. Pierre aux Liens*, and the wine-merchants and brass-shield makers *St. Léonard's* chapel of church *St. Merri*. The confraternity usually put itself under the protection of a particular saint. The goldsmiths chose *St. Éloi*, and the confraternity had a seal inscribed "*Sigillum confratrie sancti Elegii auri fabrorum.*"

The *confrérie's* resources were usually derived from initiation fees, subscriptions and legacies from members, and a share of the fines collected in the gild. The organization also derived benefits from holding real estate. It could transact business and fall in debt. The *confrérie* of the wool-weavers owing 600 pounds, put a tax of 12 *sous* on every piece of cloth manufactured in Paris. A statute of the plasterers reads: "If he finds that the proportion is not good, the plasterer shall pay five *sous* as a fine: to the Chappelle Bleive aforesaid, two *sous*, to the master who guards the gild, two *sous*, and to the one who has measured the plaster 12 *deniers*." When a plasterer took an apprentice for less than six years, he paid 20 *sous* to the Chappelle.

Part of the funds acquired by the *confrérie* were used for common expenses, and part for benevolent work. For every piece of cloth sold the wool-merchants were supposed to give a *denier* to buy grain for the poor. The rich confraternity of the goldsmiths gave every Easter a dinner to the poor of the Hôtel Dieu, while the cooks set aside a third of their fines to maintain "*les pauvres vieilles gens du mestier qui seront decheuz par fait de marchandise ou de vieillesce.*" In 1319 the vair-furriers formed an association^[12] with an initiation fee of 10 *sous* (8 fr. .40) and 6 *deniers* for the secretary, and a weekly subscription of one *denier*, the funds of which were to aid members in case of sickness or infirmity at the rate of 3 *sous* per week during illness, and 6 *sous* in convalescence. The curriers mention the use of funds from "*la boîte*" to support the orphans of the gild or children of poverty-stricken masters.

At the first appearance of the *confrérie*, the Church opposed it, suspecting in its secrecy, antagonism or some outcroppings of pagan ritualism.^[13] Later, however, both Church and *confrérie* profited by a close relationship. The monastery of St. Trond, in return for the right to fall heir to the properties of members of the shearmen and fuller's *confrérie* who died without wife or child, maintained a hospital for the care of its sick, and

conducted funerals, while the sacristan and a priest arbitrated on the occasion of disputes within the gild.

Conclusion. The trade-gild régime was a defensive one against the confused powers of feudalism and the conflicting activities of competition. It protected the apprentice against his own folly and his master; it protected the artisan against diminution in the pay-rate, illegal dismissal, and the usurpation of other trades on his field. It guarded the master from insubordination, idleness, bad measure and adulteration, and by the limitation of the number of workmen assured the sale of his goods.

Some of the principles implied in the organization we may agree with M. Lespinasse^[14] are “relatively true,” such as the protection of infant industry, guarantee of work and property, examinations and probations to make certain the skill of the candidates; prohibition of combination of several professions to prevent the abusive use of them; supervision of manufacture to assure the soundness of the product; an industrial jurisdiction from apprenticeship to mastery, lack of division in a craft such as to train in time a fully equipped workman and a future master; suppression of any parasitic intermediary between producer and consumer; work in common and in the public eyes, and solidarity of the industrial family.

On the other hand, there are shadows in the picture, and among them we may distinguish—the immoderate extension of term of apprenticeship, difficulties set in the way of becoming a master; arbitrary fiscal measures and dues; meticulous regulation and too frequent cessation from work; a routine transmission of methods of manufacture; maintenance of a fixed price, and prohibitions of combinations such as would encourage inventions and stimulate a wider economic unit.

We have studied a particularly agreeable phase of gild growth. Far off still is the bad opposition between employee and employed, though the pessimist may see the seeds of the present in this past. Though one hesitates to call with M. Fagniez the spirit of the gilds “fundamentally Christian,” he is glad to recognize such alertness of intelligence, such elaborate industrial devices and purposes, such thoughtful humanitarian interests, so complex a system of checks and balances in our supposedly naïve mediaeval precursors.

FOOTNOTES

[1] Throughout this paper I shall translate the French word *métier* by the more usual word *gild* when it refers to the organization and not the craft.

[2] Fagniez: Documents relatifs à l'Histoire de l'Industrie, etc. Intro.

[3] Levasseur: *Hist. des classes ouv.* p. 251.

[4] For a list of these guilds with their ancient French names and their modern English equivalents, see *Appendix*.

[5] Fagniez: *Études sur l'industrie à Paris*, p. 67.

[6] *Réglemens sur les arts et les mét.* ed. Depping, p. 366.

[7] "Coutumes de Beauvaisis." Beaumanoir, éd. Beugnot; p. 429.

[8] It has been estimated that four *sous* of Paris of this period are equivalent to one franc at present.

[9] Comm. d'Amiens, Doc. inédits, p. 387, p. 370.

[10] Lev.: *Hist. des classes ouv.*, vol. I, page 116.

[11] Ordonnances touchant les mét., 1312. Art. 5.

[12] Fagniez: "Études sur l'industrie," p. 290. Text in *Doc. relatifs*, No. 19.

[13] M. Lespinasse quotes the text of a decree against *confrérie* from a Council at Rouen, 1189.

[14] *Liv. des Mét.* Avant Propos par M. Lespinasse, p. xiv.

APPENDIX.

Archiers = bow-makers.

Barilliers = case-makers.

Batéeurs d'or = gold-beaters.

Batéeurs d'étain = pewter-beaters.

Batéeurs d'or en feuilles = gold-beaters.

Batéeurs d'archal = brass-beaters.

Baudraiers = curriers of shoe-leather.

Blatiers = corn-merchants.

Blasenniers = saddle-fixtures.

Boîtiers = locksmiths.

Boucliers de fer = iron-shield-makers.

Boucliers d'archal = brass-shield makers.

Bourreliers = harness-makers.

Boursiers = purse-makers.

Boutonniers = button-makers.

Brachiers = breeches-makers.

Cavesonniers = slipper-makers.

Cavetiers = cobblers.

Cervoisiers = ale-brewers.

Chandliers de sieu = tallow-chandlers.

Chanevacieriers = hemp-cloth-makers.

Chapeliers de fleurs = flower-hatters.

Chapeliers de coton = cap-makers.

Chapeliers de paon = plumed hatters.
Chapeliers de feutre = felt-hatters.
Chapuiséeurs = saddle-bow makers.
Charpentiers = carpenters.
Chauciers = hose-makers.
Couréeurs = belt-makers.
Cordiers = rope-makers.
Corduaniers = shoe-makers.
Couteliers = cutlers.
Couteliers serves = knife-blade-makers.
Crespiniers = head-dress-makers.
Crieurs = criers.
Cristâliers = jewellers.
Cuisiniers = cooks.
Cyrugiens = barbers.
Déeciers = playing dice-makers.
Drapiers = woollen-weavers.
Escueliers = pottery-sellers.
Espinguiers = pin-makers.
Estuvéeurs = bath proprietors.
Faiseurs de clous = nail-makers.
Fainiers = hay merchants.
Fermailleurs = clasp and buckle-makers.
Fripiers = old-clothes men.
Feseresses de chap d'orfois = modiste.
Fourreurs de chapeliers = fur-hatters.

Fevres = iron-workers.
Fileresses de soie = spinners of coarse silk.
Fileresses de soie à petits fuseaux = spinners of fine silk.
Fondeurs = smelters.
Foulons = fullers.
Fourbéeurs = sword-cutlers.
Gantiers = glovers.
Gueiniers = sheath-makers.
Haubergiers = coats-of-mail-makers.
Huiliers = oil-makers.
Jaugéeurs = gaugers.
Laciers = braid-makers.
Lampiers = lamp-makers.
Lanterniers = lantern-makers.
Liniers = linen merchants.
Lormiers = reins-makers.
Maçons = masons.
Marchante chanvre = hemp + thread sellers.
Maréchaux = iron-farriers.
Merciers = haberdashers.
Mesuréeurs = measurers.
Meuniers = millers.
Orfèvres = goldsmiths.
Ouv. de menues œuvres d'étain = pewterers.
Ouv. de tissus de soie = workers in silk-stuffs.
Ouv. de drap de soie = silk-cloth.

Peintres + imagiers = painters and illuminators.

Paternostriers d'os = bone-bead makers.

Paternostriers de corail = coral-bead makers.

Paternostriers d'ambre = amber-bead makers.

Paternostriers + faiseurs de boucles = brooch and bead-makers.

Pêcheurs = fishermen.

Poissonniers d'eau douce = fresh-water-fish-merchants.

Poissonniers de mer = salt-water-fish-merchants.

Potiers de terres = potters.

Potiers d'étain = pewterers.

Poulailliers = poulterers.

Regrattiers de pain de sel = retailers of salt and bread.

Regrattiers de fruits = green-grocers.

Selliers = saddlers.

Serruriers = locksmiths.

Tabletters = tablet-makers.

Tapiciers de tapiz sarrasinois = Oriental carpet-makers.

Tapiciers de tapiz nostrés = carpet-makers.

Taverniers = wine-shop-keepers.

Tisserands de queuvrechiers = kerchief-makers.

Trefilliers de fer = iron-wire-drawers.

Trefilliers d'archal = brass-wire-drawers.

Ymagiers = painters.

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2. *Le Livre des Métiers* d'Étienne Boileau, publié par René de Lespinasse et Francois Bonnardot. [Histoire Générale de Paris—Les Métiers et les corporations de la Ville de Paris, XIII^e siècle, pp. cliv + 420. Paris, Imprimerie Nationale, 1879].

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